

ByteMart — Legal & Policy Documentation Pack

Consumer E-Commerce · India

ByteMart [Private Limited / Limited]

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ByteMart — Legal & Policy Documentation Pack

About this Document

This pack contains the full set of legal and policy documents required to operate **ByteMart** — an Indian e-commerce platform retailing consumer electronics, gaming hardware, peripherals, software, and digital goods to end customers in India.

The pack is drafted to be **citation-ready** (clauses numbered 1, 1.1, 1.1.1, ...), **publication-ready** (drop into your website, app, and checkout flow), and **audit-ready** (each clause maps to one or more statutory obligations).

Applicable Laws & Statutory Framework

Short	Statute / Rule	Relevance
ICA 1872	Indian Contract Act, 1872	Offer, acceptance, consideration
IT Act 2000	Information Technology Act, 2000 + IT Rules 2021	Electronic records, grievance officer, platform accountability
DPDPA 2023	Digital Personal Data Protection Act, 2023	Lawful processing, consent, data principal rights, breach
CPA 2019	Consumer Protection Act, 2019	Consumer rights, product liability, unfair trade practices, e-commerce rules
EC Rules 2020	Consumer Protection (E-Commerce) Rules, 2020	Marketplace/seller disclosures, country of origin, return policy, grievance

Short	Statute / Rule	Relevance
CGST Act 2017	Central Goods and Services Tax Act, 2017	Tax invoice, GSTIN, TCS, e-commerce operator obligations
RBI	RBI Payment and Settlement Systems Act 2007; Customer Protection Framework 2021	Payment processing, card data, chargebacks
BIS 2016	Bureau of Indian Standards Act, 2016; MeitY CRS	Mandatory standards for listed electronics & IT goods
E-Waste 2022	E-Waste (Management) Rules, 2022	Take-back, Extended Producer Responsibility
Legal Metrology 2009	Legal Metrology (Packaged Commodities) Rules, 2011	MRP, country of origin, manufacturer/importer disclosures

Document Index

#	Document	When to display
01	Terms and Conditions (Master Agreement)	Footer link, registration, pre-checkout
02	Privacy Policy (DPDPA-compliant)	Footer link, registration, first data capture, every consent point
03	Shipping & Delivery Policy	Footer link, product page, checkout
04	Return, Refund & Replacement Policy	Footer link, product page, post-delivery
05	Cancellation Policy	"My Orders", checkout confirmation, footer
06	Payment & Pricing Policy	Checkout, footer
07	Grievance Redressal Policy	Footer link (mandatory), "Contact Us" page, every email footer

Placeholders to Fill Before Publication

All items in square brackets [...] must be replaced with real values before any document is published. Do not publish with placeholders.

- [ByteMart Private Limited / ByteMart Limited] — confirm legal entity form
- [ADDRESS], New Delhi, India — registered office (CRO-mandated)
- [CIN NUMBER] — Corporate Identification Number
- [GSTIN NUMBER] — Goods & Services Tax Identification Number
- [PAN NUMBER] — Permanent Account Number
- [support@bytemart.in], [grievance@bytemart.in] — operational and grievance emails
- [PHONE NUMBER] — customer support and grievance phone
- [GRIEVANCE OFFICER NAME] — appointed under IT Rules 2021 + EC Rules 2020
- [URL] — hosted policy URL on the production site
- [DATE] — last-updated / effective date

Disclaimer

This documentation is **a drafting scaffold prepared by an AI assistant**, not a substitute for legal advice. Before publication, ByteMart **must have these documents reviewed and customised by a qualified Indian advocate, especially a counsel practising in consumer law, e-commerce, and data protection**. Statutory references are accurate as of the last-updated date but are subject to amendment.

ByteMart — Terms and Conditions

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Indian Contract Act, 1872 · Consumer Protection Act, 2019 (incl. E-Commerce Rules, 2020) · Information Technology Act, 2000 · IT (Intermediary Guidelines & Digital Media Ethics Code) Rules, 2021 · Digital Personal Data Protection Act, 2023 · CGST Act, 2017 · Bureau of Indian Standards Act, 2016 · E-Waste (Management) Rules, 2022 · Legal Metrology (Packaged Commodities) Rules, 2011.

1. Introduction & Acceptance

1.1 These Terms and Conditions (“**Terms**”) govern your access to, browsing of, and use of the ByteMart website, mobile application, and any related digital interface (collectively, the “**Platform**”).

1.2 The Platform is operated by [**ByteMart Private Limited / ByteMart Limited**], a company incorporated under the Companies Act, 2013, having its registered office at [**ADDRESS**], **New Delhi, India** (Corporate Identification Number: [**CIN**]; GSTIN: [**GSTIN**]) (“**ByteMart**”, “**we**”, “**us**”, or “**our**”).

1.3 By accessing, browsing, or using the Platform, you (“**User**”, “**you**”, or “**your**”) confirm that you have read, understood, and agree to be legally bound by these Terms, the Privacy Policy, the Shipping and Delivery Policy, the Return, Refund and Replacement Policy, the Cancellation Policy, the Payment and Pricing Policy, and the Grievance Redressal Policy (collectively, the “**Policies**”).

1.4 If you do not agree with any of the Policies, you must not access or use the Platform.

1.5 ByteMart may amend these Terms at any time. Material changes will be notified via the Platform and/or via email at least seven (7) days before the effective date of the changes. Continued use of the Platform after the effective date constitutes acceptance of the revised Terms.

2. Definitions

2.1 “**Act**” means the Information Technology Act, 2000.

2.2 “**Applicable Law**” means all laws, statutes, rules, regulations, ordinances, and orders applicable in the Republic of India, including but not limited to the Indian Contract Act, 1872, the Consumer Protection Act, 2019, the Information Technology Act, 2000, the Digital Personal Data Protection Act, 2023, the Central Goods and Services Tax Act, 2017, the Consumer Protection (E-Commerce) Rules, 2020, the Bureau of Indian Standards Act, 2016, the E-Waste (Management) Rules, 2022, and the rules and regulations made thereunder.

2.3 “**Buyer**” or “**Customer**” means any User who places or attempts to place an Order on the Platform.

2.4 “**Content**” means all text, graphics, images, logos, icons, photographs, audio, video, software, and other material made available on the Platform.

2.5 “**Order**” means a request placed by a User to purchase one or more Products on the Platform.

2.6 “**Order Confirmation**” means the email or SMS confirmation issued by ByteMart to confirm acceptance of an Order.

2.7 “**Platform**” means the ByteMart website, mobile application, and any related digital interface operated by ByteMart.

2.8 “**Product**” means any good offered for sale on the Platform, including but not limited to consumer electronics, gaming hardware, accessories, peripherals, components, software, digital keys, gift cards, refurbished items, and open-box items.

2.9 “**Reseller**” means any third-party authorised distributor, wholesaler, or original equipment manufacturer (“**OEM**”) from whom ByteMart sources Products.

2.10 “**User**” means any individual or legal entity that accesses or uses the Platform.

3. Eligibility

3.1 You must be at least eighteen (18) years of age and a resident of India to use the Platform or place Orders.

3.2 If you are using the Platform on behalf of a business entity, you represent and warrant that you have the authority to bind such entity to these Terms.

3.3 ByteMart reserves the right to refuse service, terminate accounts, or cancel Orders at its sole discretion if it reasonably believes that the User does not meet the eligibility requirements, or where such action is necessary to comply with Applicable Law.

4. Account Registration

4.1 Certain features of the Platform may require you to register for an account. When registering, you agree to provide accurate, current, and complete information and to keep such information updated.

4.2 You are responsible for maintaining the confidentiality of your account credentials, including your password, and for all activities that occur under your account, whether or not you authorised them.

4.3 ByteMart shall not be liable for any loss or damage arising from unauthorised access to or use of your account.

4.4 You agree to notify ByteMart immediately of any unauthorised use of your account or any other breach of security at [support@bytemart.in].

4.5 ByteMart reserves the right to suspend, disable, or terminate your account at any time, with or without notice, for conduct that ByteMart reasonably believes violates these Terms or is otherwise harmful to other Users, ByteMart, or third parties.

5. Products, Pricing & Availability

5.1 All Product listings on the Platform are invitations to offer and shall not constitute offers to sell, in accordance with the Indian Contract Act, 1872.

5.2 Prices displayed on the Platform are in Indian Rupees (₹) and are inclusive of all applicable taxes, including Goods and Services Tax (“**GST**”), unless expressly stated otherwise.

5.3 ByteMart reserves the right to modify prices at any time prior to Order acceptance. The price payable for a Product shall be the price displayed at the time of Order placement.

5.4 Product availability is subject to change without notice. ByteMart shall not be liable for any inability to fulfil Orders due to stock unavailability.

5.5 Product images, descriptions, and specifications are indicative. Actual Product packaging, appearance, and materials may vary.

5.6 For Products covered under the Compulsory Registration Scheme of the Ministry of Electronics and Information Technology (“**MeitY CRS**”) or the Bureau of Indian Standards (“**BIS**”),

ByteMart shall ensure that only Products bearing valid BIS registration (including ISI or CRS marks where applicable) are offered for sale on the Platform.

5.7 Each Product page shall display the country of origin and the name and address of the manufacturer or importer, in compliance with the Legal Metrology (Packaged Commodities) Rules, 2011, and the Consumer Protection (E-Commerce) Rules, 2020.

6. Orders & Contract Formation

6.1 To place an Order, you must follow the instructions on the Platform and provide accurate delivery and payment information.

6.2 Submission of an Order constitutes an offer by you to enter into a contract with ByteMart, in accordance with the Indian Contract Act, 1872. No contract is formed until ByteMart accepts your offer by issuing an Order Confirmation.

6.3 ByteMart reserves the right to cancel any Order prior to issuance of the Order Confirmation, including but not limited to cases of pricing errors, stock unavailability, suspected fraud, non-compliance with these Terms, or any legal or regulatory restriction.

6.4 Each Order shall be governed by these Terms and any additional terms communicated at the time of Order placement.

6.5 ByteMart may, at its sole discretion, place limits on Order quantities, Order value, or the total number of Orders per User, per household, or per payment instrument.

7. Payment Terms

7.1 ByteMart accepts payment through the methods specified on the Platform, which may include credit cards, debit cards, Unified Payments Interface (“**UPI**”), net banking, mobile wallets, prepaid payment instruments, and Cash on Delivery (“**COD**”) (where available).

7.2 All payments are processed in compliance with the rules and regulations of the Reserve Bank of India (“**RBI**”) and the Payment and Settlement Systems Act, 2007.

7.3 ByteMart uses third-party payment gateway providers that comply with the Payment Card Industry Data Security Standard (“**PCI-DSS**”) and applicable RBI guidelines. ByteMart does not store your complete payment card or banking credentials.

7.4 You agree to pay all charges at the prices displayed at the time of Order placement, together with applicable taxes, delivery charges, and any other fees specified at checkout.

7.5 For the avoidance of doubt, title to any Product purchased shall pass to you upon delivery, and the risk of loss shall pass to you upon delivery at the address specified in the Order.

7.6 For the avoidance of doubt, GST on e-commerce supplies shall be discharged in accordance with the CGST Act, 2017, and any tax collected at source (“**TCS**”) by ByteMart as an e-commerce operator shall be reflected in the tax invoice.

7.7 For full payment terms, please refer to the Payment and Pricing Policy.

8. Shipping & Delivery

8.1 ByteMart offers two delivery options as set out in the Shipping and Delivery Policy: (a) **Fast Delivery** — between ₹100 and ₹250, depending on the delivery location, with delivery within 3-4 business days; and (b) **Regular Delivery** — free of charge, with delivery within 5-7 business days.

8.2 In the event that a Fast Delivery Order is not delivered within the guaranteed 3-4 business day window, the Buyer may request a refund of the Fast Delivery charge only (not the Product price or other charges) by emailing [support@bytemart.in] with the Order number.

Such refund shall be processed in accordance with Clause 11 and the Return, Refund and Replacement Policy.

8.3 Delivery timelines are indicative and may be affected by factors beyond ByteMart's reasonable control, including natural disasters, transportation disruptions, government actions, and force majeure events.

8.4 For complete shipping terms, including serviceable locations, tracking, failed delivery, and risk of loss, please refer to the Shipping and Delivery Policy.

9. Returns, Refunds & Replacements

9.1 ByteMart accepts returns, refunds, and replacements strictly in accordance with the Return, Refund and Replacement Policy.

9.2 Returns shall be accepted only in the following circumstances: (a) **Physical damage** to the Product upon delivery; (b) **Incomplete Order** delivered; or (c) **Wrong Product** delivered.

9.3 For damaged, wrong, or incomplete Orders, ByteMart shall, at its sole discretion and subject to verification: (a) Offer a **replacement** of the Product, subject to stock availability; or (b) Offer a **complete refund** of the Product price if the Product or a suitable replacement is out of stock.

9.4 **Refunds for cancelled Orders** shall be processed without any charge to the Buyer. **Refunds for damaged Products are not provided**; replacement shall be offered instead, subject to Clause 9.3.

9.5 Standard refund processing time is 3-7 business days from initiation, subject to bank processing timelines. Replacement processing time is 5-7 business days.

9.6 For complete terms governing returns, refunds, and replacements, please refer to the Return, Refund and Replacement Policy.

10. Cancellations

10.1 You may cancel your Order at any time **within the delivery window** (i.e., from Order placement until actual delivery or refusal of delivery) via the **"My Orders"** section of your account on the Platform, or by contacting [support@bytemart.in].

10.2 If you cancel an Order on the scheduled delivery day (i.e., when the Order is in the "Out for Delivery" stage), ByteMart reserves the right to **deny delivery** at the time of attempted delivery.

10.3 If you **accept delivery** of a cancelled Order, the Order shall be deemed delivered, and no return shall be permitted under the cancellation provisions. Any post-delivery return request shall be governed exclusively by the Return, Refund and Replacement Policy, and shall be subject to the 14-day Reporting Window and the limited grounds set out therein (physical damage, incomplete Order, wrong Product, or wrong version).

10.4 Refunds for cancelled Orders shall be processed in accordance with Clause 11 and the Return, Refund and Replacement Policy.

10.5 For complete cancellation terms, please refer to the Cancellation Policy.

11. Refunds

11.1 Refunds shall be processed to the original payment method used at the time of Order placement.

11.2 Once a refund ticket is initiated, the refund may take 3-7 business days to be credited to the Buyer's account due to bank processing timelines.

11.3 ByteMart shall initiate refunds as quickly as possible, but the final crediting of the refund is subject to the timelines of the Buyer's bank or payment instrument issuer.

11.4 No refund shall be processed for Products damaged after delivery. In such cases, replacement shall be offered in accordance with the Return, Refund and Replacement Policy.

11.5 For complete refund terms, please refer to the Return, Refund and Replacement Policy.

12. User Obligations

12.1 You agree to use the Platform only for lawful purposes and in compliance with all Applicable Law.

12.2 You agree not to: (a) Use the Platform for any fraudulent, illegal, or unauthorised purpose; (b) Impersonate any person or entity, or falsely state or otherwise misrepresent your affiliation with any person or entity; (c) Interfere with or disrupt the Platform, its servers, or any networks connected to the Platform; (d) Use any device, software, or routine to interfere with the proper functioning of the Platform; (e) Attempt to gain unauthorised access to any portion or feature of the Platform, other accounts, computer systems, or networks connected to the Platform; (f) Upload or transmit viruses, malware, or any other malicious code; (g) Engage in any activity that may unreasonably burden the Platform's infrastructure; (h) Use the Platform to harass, threaten, defame, or intimidate any person; (i) Copy, reproduce, republish, upload, post, transmit, or distribute any Content in any manner without prior written consent; or (j) Circumvent, disable, or otherwise interfere with security-related features of the Platform.

12.3 You are solely responsible for any content you upload, post, transmit, or otherwise make available through the Platform.

13. Reseller Relationship

13.1 ByteMart sources Products from authorised Resellers, distributors, and OEMs. ByteMart is the **principal seller** of all Products listed on the Platform and bears direct contractual and statutory responsibility to the Buyer in accordance with the Consumer Protection Act, 2019, and the E-Commerce Rules, 2020.

13.2 ByteMart acts as a **retailer** of the Products. ByteMart is **not** the manufacturer of any Product sold on the Platform and does not design, manufacture, or quality-test the Products at source, except for Products manufactured by ByteMart's group entities, where applicable.

13.3 The relationship between ByteMart and its Resellers is governed by separate written agreements. Nothing in these Terms shall be construed to create any privity of contract, agency, partnership, or joint venture between a Reseller and a Buyer.

13.4 ByteMart does not act as an agent of the Reseller, and the Reseller does not act as an agent of ByteMart, except as expressly disclosed to the Buyer in writing on the relevant Product page.

13.5 **Warranty and Post-Sales Service.** Warranty support, where applicable, is the responsibility of the **original manufacturer** of the Product. ByteMart's role is limited to: (a) Providing the **ByteMart tax invoice** as proof of purchase to be used by the Buyer for manufacturer warranty claims; (b) Facilitating communication between the Buyer and the manufacturer or its authorised service centre, on a best-efforts basis; and (c) Where the Product is delivered in a damaged, incomplete, or wrong condition, providing replacement or refund in accordance with the Return, Refund and Replacement Policy.

13.6 ByteMart does **not** assume the manufacturer's statutory warranty obligations, does not provide on-site service, repair, or technical support, and is not liable for any manufacturing defect, design defect, software/firmware issue, or post-delivery hardware failure, except where such issue is attributable to ByteMart's own act or omission. The Buyer's right to seek redressal under the Consumer Protection Act, 2019, against either ByteMart or the manufacturer is not affected by this Clause.

14. Intellectual Property

14.1 All Content on the Platform, including but not limited to text, graphics, logos, images, audio, video, software, and the compilation thereof, is the property of ByteMart or its licensors and is protected by Indian and international copyright, trademark, patent, and other intellectual property laws.

14.2 You may not reproduce, distribute, modify, create derivative works of, publicly display, publicly perform, republish, download, store, or transmit any of the Content without the prior written consent of ByteMart.

14.3 “**ByteMart**” and all related logos, product names, and service names are trademarks of ByteMart. You may not use such marks without the prior written consent of ByteMart.

15. Data & Privacy

15.1 ByteMart processes your personal data in accordance with the Digital Personal Data Protection Act, 2023 (“**DPDPA**”), the Information Technology Act, 2000, and the IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, as set out in the Privacy Policy.

15.2 By using the Platform, you consent to the collection, use, storage, processing, and sharing of your personal data in accordance with the Privacy Policy.

15.3 You have the right to access, correct, erase, and nominate another individual in respect of your personal data, in accordance with the DPDPA. To exercise these rights, please contact the Grievance Officer.

16. Product Standards, Safety & E-Waste

16.1 ByteMart ensures that Products requiring mandatory registration under the **BIS Act, 2016**, the **MeitY CRS**, or any other Applicable Law are sourced only from BIS-registered manufacturers or importers.

16.2 The Buyer is entitled to receive Products that comply with the standards notified under the **Legal Metrology Act, 2009**, and the **Legal Metrology (Packaged Commodities) Rules, 2011**, including declarations of MRP, net quantity, manufacturer/importer details, country of origin, and date of manufacture/import.

16.3 In accordance with the **E-Waste (Management) Rules, 2022**, ByteMart supports Extended Producer Responsibility (“**EPR**”) and provides a take-back mechanism for end-of-life electrical and electronic equipment purchased on the Platform. Buyers may deposit e-waste at the collection points communicated on the Platform or contact [support@bytemart.in] for scheduled collection, where available.

16.4 Buyers are advised to handle lithium-ion and other battery-powered Products with care and to dispose of damaged or end-of-life batteries only through authorised channels.

16.5 **Manufacturer warranties and post-sales service** are the responsibility of the **original manufacturer** of the Product. ByteMart is a retailer and does not provide warranty or post-sales service in its own name, except where expressly stated on a specific Product page.

- (a) The manufacturer’s warranty terms (including period, scope, and exclusions) shall apply as set out in the warranty card, terms document, or manufacturer’s website;
- (b) The **ByteMart tax invoice** shall be accepted as valid proof of purchase for manufacturer warranty claims, and shall contain the Product description, model number, serial number (where recorded), purchase date, and price;

- (c) For any software or hardware issue that develops after delivery (where there is no physical damage at the time of delivery), the Buyer should contact the original manufacturer directly for troubleshooting, repair, or replacement under warranty;
- (d) ByteMart shall, on the Buyer's request, provide a duplicate invoice and facilitate communication with the manufacturer's service centre on a best-efforts basis.

16.6 Nothing in Clause 16.5 limits the Buyer's rights under the Consumer Protection Act, 2019, including the right to seek redressal against product defects, deficiency in service, or unfair trade practice, against either ByteMart or the manufacturer.

17. Disclaimers

17.1 The Platform and all Content are provided on an "as is" and "as available" basis, without any warranties of any kind, express or implied, except as required by Applicable Law.

17.2 ByteMart does not warrant that the Platform will be uninterrupted, error-free, or free from viruses or other harmful components.

17.3 ByteMart does not warrant the accuracy, completeness, or usefulness of any Content on the Platform, except for statutory disclosures required under Applicable Law.

17.4 Nothing in this clause shall be construed to exclude, restrict, or limit any warranty that cannot be excluded, restricted, or limited under the Consumer Protection Act, 2019, or any other Applicable Law.

18. Limitation of Liability

18.1 To the fullest extent permitted by Applicable Law, ByteMart shall not be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages, including but not limited to loss of profits, revenue, data, use, goodwill, or other intangible losses, arising out of or in connection with your use of the Platform.

18.2 In no event shall ByteMart's total liability for any claim arising out of or relating to these Terms or your use of the Platform exceed the total amount paid by you to ByteMart for the specific Product giving rise to the claim.

18.3 Nothing in this clause shall limit ByteMart's liability for: (a) Death or personal injury caused by negligence; (b) Fraud or fraudulent misrepresentation; (c) Defective products or product liability under the Consumer Protection Act, 2019; (d) Breach of data protection obligations under the DPDPA; or (e) Any other liability that cannot be excluded or limited under Applicable Law.

19. Indemnification

19.1 You agree to indemnify, defend, and hold harmless ByteMart, its officers, directors, employees, agents, and Resellers from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Your use of the Platform; (b) Your breach of these Terms; (c) Your violation of any Applicable Law; or (d) Your infringement of any third-party rights.

20. Force Majeure

20.1 ByteMart shall not be liable for any failure or delay in the performance of its obligations under these Terms to the extent such failure or delay is caused by circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, pan-

demics, epidemics, government actions, lockdowns, war, terrorism, civil unrest, labour disputes, transportation disruptions, failures of telecommunications or power infrastructure, or non-performance by Resellers or logistics partners.

20.2 The affected party's obligations shall be suspended for the duration of the force majeure event. If the force majeure event continues for more than thirty (30) days, either party may terminate the affected Order without liability.

21. Termination

21.1 ByteMart may terminate or suspend your account or access to the Platform at any time, with or without notice, for any conduct that ByteMart, in its sole discretion, believes violates these Terms, is otherwise harmful to other Users, ByteMart, or third parties, or is required to comply with Applicable Law.

21.2 You may terminate your account at any time by contacting [support@bytemart.in] or via the account settings.

21.3 Upon termination, all provisions of these Terms that by their nature should survive termination shall survive, including but not limited to clauses on Intellectual Property, Disclaimers, Limitation of Liability, Indemnification, Refunds (for Orders placed prior to termination), Governing Law, Jurisdiction, and Dispute Resolution.

22. Governing Law

22.1 These Terms, and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with them, shall be governed by and construed in accordance with the laws of the Republic of India.

23. Jurisdiction

23.1 The courts of **New Delhi, India**, shall have **exclusive jurisdiction** in respect of all matters, disputes, or claims arising out of or relating to these Terms, the Platform, or the use thereof.

24. Dispute Resolution & Consumer Redressal

24.1 ByteMart has appointed a Grievance Officer in accordance with the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, and the Consumer Protection (E-Commerce) Rules, 2020. For details, please refer to the Grievance Redressal Policy.

24.2 Buyers may file a complaint with the **National Consumer Helpline ("NCH")** at telephone number **1915** or via the **INGRAM portal** at <https://consumerhelpline.gov.in/>.

24.3 Buyers may file a consumer complaint electronically via the **e-Daakhil portal** at <https://edaakhil.nic.in/>, subject to pecuniary jurisdiction.

24.4 Subject to applicable pecuniary limits, Buyers may approach the **District, State, or National Consumer Disputes Redressal Commission**.

24.5 ByteMart encourages the use of pre-litigation mediation through the Department of Consumer Affairs or other authorised mediation centres.

24.6 For complete terms governing grievance handling timelines, escalation, and contact details, please refer to the Grievance Redressal Policy.

25. Severability

25.1 If any provision of these Terms is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be severed, and the remaining provisions shall remain in full force and effect.

26. Waiver

26.1 No waiver by ByteMart of any term or condition set out in these Terms shall be deemed a further or continuing waiver of such term or condition, or a waiver of any other term or condition.

26.2 No failure or delay by ByteMart in exercising any right, power, or privilege under these Terms shall operate as a waiver thereof.

27. Entire Agreement

27.1 These Terms, together with the Privacy Policy, Shipping and Delivery Policy, Return, Refund and Replacement Policy, Cancellation Policy, Payment and Pricing Policy, and Grievance Redressal Policy, constitute the entire agreement between you and ByteMart regarding the use of the Platform, and supersede all prior or contemporaneous communications, representations, and proposals, whether oral or written.

28. Contact

28.1 For questions regarding these Terms, please contact:

ByteMart [Private Limited / Limited] Registered Office: [ADDRESS], New Delhi, India CIN: [CIN] GSTIN: [GSTIN] PAN: [PAN] Customer Support: [support@bytemart.in] | [PHONE] **Grievance Officer:** [NAME] **Grievance Officer Email:** [grievance@bytemart.in] **Grievance Officer Phone:** [PHONE] Grievance Officer Address: [ADDRESS], New Delhi, India

End of Terms and Conditions

ByteMart — Privacy Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Digital Personal Data Protection Act, 2023 (DPDPA) · Information Technology Act, 2000 · IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 · IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 · Consumer Protection (E-Commerce) Rules, 2020.

1. Introduction

1.1 This Privacy Policy ("**Policy**") describes how **[ByteMart Private Limited / ByteMart Limited]** ("**ByteMart**", "**we**", "**us**", or "**our**") collects, uses, stores, processes, shares, and protects the personal data of Users ("**you**" or "**your**") when you access or use the ByteMart website, mobile application, and related services (the "**Platform**").

1.2 This Policy is published in compliance with the **Digital Personal Data Protection Act, 2023 (“DPDPA”)**, the **Information Technology Act, 2000**, the **IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011**, and the **Consumer Protection (E-Commerce) Rules, 2020**.

1.3 By accessing or using the Platform, you confirm that you have read and understood this Policy and consent to the processing of your personal data as described herein.

2. Definitions

2.1 **“Data Principal”** means the individual to whom the personal data relates, i.e., you.

2.2 **“Data Fiduciary”** means the person who determines the purpose and means of processing personal data, i.e., ByteMart.

2.3 **“Data Processor”** means any person who processes personal data on behalf of a Data Fiduciary.

2.4 **“Personal Data”** means any data about an individual who is identifiable by or in relation to such data.

2.5 **“Processing”** means any operation or set of operations performed on personal data, including collection, recording, organisation, structuring, storage, adaptation, retrieval, consultation, use, disclosure, alignment, restriction, erasure, or destruction.

2.6 **“Consent”** means a freely given, specific, informed, and unconditional agreement to the processing of personal data by the Data Principal.

2.7 **“Grievance Officer”** means the officer appointed by ByteMart under the IT Rules 2021 and the E-Commerce Rules 2020, who is also the designated point of contact for data-related grievances.

3. What Personal Data We Collect

3.1 We collect the following categories of personal data:

- (a) **Identity & Account Data** — name, email address, mobile number, date of birth (where required for age verification), password (hashed), and account preferences.
- (b) **Order & Transaction Data** — billing and shipping addresses, payment instrument details (processed and tokenised by our payment gateway; we do not store full card or banking credentials), order history, invoice details, and GSTIN (for B2B buyers).
- (c) **Device & Technical Data** — IP address, browser type and version, device identifiers, operating system, timezone, language settings, and referring URLs.
- (d) **Usage & Analytics Data** — pages viewed, links clicked, search queries, products viewed, session duration, and other interaction data.
- (e) **Location Data** — coarse location derived from IP address for serviceability checks, and precise location only with your explicit consent (e.g., for delivery tracking).
- (f) **Communications Data** — emails, SMS, chat transcripts, and call recordings (where you contact our support team with notice of recording).
- (g) **Marketing & Preference Data** — subscription preferences, opt-in/opt-out status, and product interests.
- (h) **Cookies & Similar Technologies Data** — see Clause 10.

3.2 We do not knowingly collect personal data of children under the age of 18. If we become aware that we have inadvertently collected such data, we will delete it in accordance with Clause 13.

4. Purpose of Collection & Use

4.1 We process your personal data for the following purposes, each of which has a lawful basis under the DPDPA:

- (a) **Account creation and management** — to register, authenticate, and maintain your account;
- (b) **Order fulfilment** — to process, ship, and deliver your Orders, and to manage returns, refunds, and replacements;
- (c) **Payment processing** — to authorise, capture, settle, and refund payments;
- (d) **Customer support** — to respond to your queries, complaints, and grievance requests;
- (e) **Platform improvement** — to analyse usage, debug, secure, and optimise the Platform;
- (f) **Personalisation** — to recommend Products and tailor content;
- (g) **Marketing** — to send promotional communications, subject to your consent and opt-out rights;
- (h) **Fraud prevention and security** — to detect, prevent, and address fraud, abuse, security incidents, and violations of our Terms;
- (i) **Legal & regulatory compliance** — to comply with Applicable Law, including tax, accounting, anti-money laundering, and consumer protection obligations; and
- (j) **EPR and e-waste compliance** — to fulfil Extended Producer Responsibility obligations under the E-Waste (Management) Rules, 2022.

4.2 We will not process your personal data for any purpose other than the purposes set out in this Policy or as required by Applicable Law, unless we obtain fresh consent from you.

5. Consent

5.1 We obtain your Consent before processing your personal data, except where processing is permitted without consent under the DPDPA (e.g., for compliance with legal obligations, medical emergencies, or public interest).

5.2 Consent is sought at the point of data collection, is specific to the purpose, and is recorded (e.g., via opt-in checkboxes, logged API calls, or signed digital consent records).

5.3 You may withdraw your Consent at any time, in accordance with Clause 11. Withdrawal of Consent shall not affect the lawfulness of processing carried out prior to such withdrawal.

5.4 If we are unable to process certain personal data on the basis of Consent, we may not be able to provide the corresponding Platform feature or service.

6. Disclosure & Sharing

6.1 We do not sell your personal data.

6.2 We may share your personal data with the following categories of recipients, strictly on a need-to-know basis:

- (a) **Logistics & Delivery Partners** — for shipping and delivery of your Orders;
- (b) **Payment Gateway Providers & Banks** — for processing payments, refunds, and chargebacks;
- (c) **Technology Service Providers** — including cloud hosting, analytics, customer support, email, and SMS providers, who act as Data Processors under written agreements;
- (d) **Resellers, OEMs, and Warranty Service Providers** — for warranty and after-sales support;
- (e) **Professional Advisers** — including auditors, legal counsel, and tax advisers;
- (f) **Government Authorities, Law Enforcement, and Courts** — where required by Applicable Law or to protect our rights;
- (g) **Acquirers or Successors** — in the event of a merger, acquisition, restructuring, or sale of all or part of our business, subject to appropriate confidentiality and data protection obligations.

6.3 All Data Processors engaged by us are bound by written contracts that require them to process personal data only for the specified purpose, implement reasonable security measures, and comply with the DPDPA.

7. Cross-Border Transfer

7.1 We primarily store and process your personal data within India.

7.2 Where personal data is transferred outside India (e.g., to a global cloud service provider), we ensure that such transfer is in compliance with the DPDPA and any other Applicable Law. By using the Platform, you consent to such cross-border transfer.

8. Data Retention

8.1 We retain your personal data only for as long as necessary to fulfil the purposes for which it was collected, or as required by Applicable Law.

8.2 Specific retention periods include:

- (a) **Account Data** — for the duration of your account and up to 3 years after account closure, or as required by law;
- (b) **Order & Transaction Data** — for a minimum of 8 years from the date of transaction, in accordance with the Income Tax Act, 1961, and the CGST Act, 2017;
- (c) **Customer Support Records** — for 3 years from the date of resolution;
- (d) **Marketing Data** — until you opt out or withdraw consent;
- (e) **Grievance Records** — for 3 years, in accordance with the E-Commerce Rules, 2020.

8.3 Upon expiry of the retention period, we will delete or anonymise the personal data in accordance with our internal data lifecycle policy.

9. Security Measures

9.1 We implement reasonable security practices and procedures as required under the IT Act, 2000, the IT (Reasonable Security Practices) Rules, 2011, and the DPDPA, including but not limited to:

- (a) Encryption of personal data in transit (TLS 1.2 or higher) and at rest (AES-256 or equivalent);
- (b) Access controls based on the principle of least privilege;
- (c) Multi-factor authentication for administrative access;
- (d) Regular security audits and vulnerability assessments;
- (e) Incident response and breach notification procedures;
- (f) Employee training on data protection and security;
- (g) Physical and logical segregation of production and non-production environments.

9.2 In the event of a personal data breach, we will notify the Data Protection Board of India and affected Data Principals in accordance with Section 8(7) of the DPDPA.

10. Cookies & Tracking Technologies

10.1 We use cookies, web beacons, pixels, and similar technologies (“**Cookies**”) to operate the Platform, remember your preferences, analyse usage, and personalise content.

10.2 Categories of Cookies used:

- (a) **Strictly Necessary Cookies** — required for the Platform to function (e.g., session, authentication);

- (b) **Performance & Analytics Cookies** — to measure usage and improve the Platform;
- (c) **Functionality Cookies** — to remember your preferences (e.g., language, location);
- (d) **Marketing & Advertising Cookies** — to deliver relevant ads and measure their effectiveness.

10.3 You can manage your Cookie preferences via the Cookie consent banner or your browser settings. Disabling certain Cookies may affect the functionality of the Platform.

11. Your Rights as a Data Principal

11.1 Under the DPDPA and other Applicable Law, you have the following rights:

- (a) **Right to Access** — to obtain a summary of your personal data being processed and the associated processing activities;
- (b) **Right to Correction & Erasure** — to correct inaccurate or misleading personal data and to request erasure of personal data that is no longer necessary;
- (c) **Right to Withdraw Consent** — to withdraw Consent at any time, with prospective effect;
- (d) **Right of Nomination** — to nominate another individual to exercise your rights in the event of your death or incapacity;
- (e) **Right to Grievance Redressal** — to file a complaint with our Grievance Officer and, if unsatisfied, with the Data Protection Board of India.

11.2 To exercise any of these rights, please contact the Grievance Officer at [grievance@bytemart.in]. We will respond to your request within thirty (30) days, or such longer period as may be permitted under the DPDPA, after identity verification.

12. Children's Data

12.1 The Platform is not intended for individuals under the age of 18. We do not knowingly collect personal data from children.

12.2 If we become aware that we have inadvertently collected personal data from a child under 18, we will delete such data as soon as possible.

12.3 If you believe that a child has provided us with personal data, please contact the Grievance Officer.

13. Third-Party Links

13.1 The Platform may contain links to third-party websites, applications, or services that are not owned or controlled by ByteMart.

13.2 We are not responsible for the privacy practices of such third parties. We encourage you to read the privacy policies of every website and application that collects your personal data.

14. Automated Decision-Making & Profiling

14.1 We may use automated processing, including profiling, for purposes such as fraud detection, personalised recommendations, and dynamic pricing, in accordance with Applicable Law.

14.2 You have the right to request human review of any automated decision that significantly affects you, in accordance with the DPDPA.

15. Changes to this Policy

15.1 We may update this Policy from time to time. Material changes will be notified via the Platform and/or via email at least seven (7) days before the effective date of the changes.

15.2 The “Last Updated” and “Effective Date” at the top of this Policy indicate when it was last revised.

16. Contact & Grievance Officer

16.1 For all privacy-related queries, requests, and grievances, please contact our Grievance Officer:

Grievance Officer: [NAME] ByteMart [Private Limited / Limited] Registered Office: [ADDRESS], New Delhi, India **Email:** [grievance@bytemart.in] **Phone:** [PHONE] **Response timeline:** Acknowledgement within 48 hours; resolution within 30 days.

16.2 If you are not satisfied with our response, you may escalate the matter to the **Data Protection Board of India** in accordance with the DPDPA.

End of Privacy Policy

ByteMart — Shipping & Delivery Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Consumer Protection Act, 2019 · Consumer Protection (E-Commerce) Rules, 2020 (Reg. 5 — disclosures, including shipping and delivery) · Indian Contract Act, 1872 (delivery and risk) · Sale of Goods Act, 1930 (transfer of property and risk) · Legal Metrology (Packaged Commodities) Rules, 2011 (label/declarations).

1. Scope

1.1 This Shipping and Delivery Policy (“**Shipping Policy**”) governs the dispatch, transit, and delivery of all Products purchased on the ByteMart Platform.

1.2 This Shipping Policy forms an integral part of the ByteMart Terms and Conditions. In the event of a conflict, this Shipping Policy shall prevail for matters relating to shipping and delivery.

2. Delivery Options

2.1 ByteMart offers the following delivery options, subject to serviceability of the delivery pincode:

- (a) **Fast Delivery** — a paid, expedited delivery option;
- (b) **Regular Delivery** — a complimentary, standard delivery option.

2.2 The availability of each option may vary by Product, Seller, and delivery pincode. Not all options may be available for all Orders.

2.3 Delivery days are counted in **business days**, excluding Sundays and public holidays declared in the Buyer’s state of delivery.

3. Fast Delivery

3.1 Charge: Between **₹100 and ₹250**, depending on the Buyer's delivery location. The exact Fast Delivery charge applicable to an Order is displayed at checkout before payment.

3.2 Delivery Timeframe: **3-4 business days** from the date of Order Confirmation.

3.3 Guarantee & Refund of Fast Delivery Charge: If a Fast Delivery Order is not delivered within the guaranteed 3-4 business day window, the Buyer may request a **refund of the Fast Delivery charge only** (not the Product price, taxes, or other charges) by emailing [support@bytemart.in] with the Order number. Such refund requests shall be processed in accordance with the Return, Refund and Replacement Policy, within 3-7 business days of verification.

3.4 Exclusions from the Fast Delivery Guarantee: The guarantee does not apply in cases of: (a) Force majeure events (see Clause 11 of the Terms); (b) Inaccurate or incomplete delivery address provided by the Buyer; (c) Buyer unavailability at the delivery address after reasonable delivery attempts; (d) Refusal to accept delivery; (e) Government-imposed restrictions, lockdowns, or curfews in the delivery area; (f) Non-serviceable or restricted pincode, where Fast Delivery was inadvertently displayed.

3.5 Order Cut-off: Fast Delivery Orders placed after the daily cut-off time (as displayed on the Product/checkout page) shall be deemed placed on the next business day for the purpose of computing the delivery window.

4. Regular Delivery

4.1 Charge: **Free of charge.**

4.2 Delivery Timeframe: **5-7 business days** from the date of Order Confirmation.

4.3 Regular Delivery is the default delivery option unless Fast Delivery is selected by the Buyer at checkout.

4.4 The Regular Delivery timeframe is indicative. ByteMart shall not be liable for delays beyond its reasonable control, including but not limited to logistics partner delays, weather events, or local disruptions.

5. Serviceable Locations

5.1 ByteMart currently delivers to all serviceable pincodes across India, as determined by our logistics partners.

5.2 The Buyer may enter a pincode on any Product page to check serviceability and the available delivery options before adding the Product to the cart.

5.3 Certain pin codes may be classified as **out-of-service area ("OSA")** or **restricted zone**, in which case delivery may not be available or may be subject to additional charges and timelines.

5.4 ByteMart reserves the right to add, modify, or remove pin codes from its serviceable list at any time, with or without notice.

6. Order Tracking

6.1 Once an Order is dispatched, the Buyer will receive a dispatch confirmation via email and/or SMS containing the **tracking link** and **consignment number**.

6.2 The Buyer may also track the Order via the **"My Orders"** section of their account on the Platform.

6.3 Tracking information is provided by the logistics partner. Any discrepancy in tracking should be reported to [support@bytemart.in] for investigation.

7. Delivery Attempts

7.1 The logistics partner shall make up to **three (3) delivery attempts** at the address specified in the Order.

7.2 If the Buyer is unavailable at the time of the delivery attempts, the logistics partner may contact the Buyer on the registered phone number to schedule a re-attempt.

7.3 If delivery cannot be completed after three (3) attempts or within seven (7) days of the first attempt (whichever is earlier), the Order shall be **returned to origin (“RTO”)**.

7.4 In the event of an RTO: (a) The Order shall be treated as cancelled; (b) Refund shall be processed in accordance with the Return, Refund and Replacement Policy, after deduction of any return shipping charges, if applicable; and (c) The Fast Delivery charge shall not be refunded if the non-delivery is attributable to the Buyer’s unavailability or refusal.

8. Risk of Loss & Title

8.1 The risk of loss and title to each Product shall pass to the Buyer upon successful delivery to the address specified in the Order and the Buyer’s (or any adult at the address’s) acknowledgement of receipt.

8.2 Until such acknowledgement, ByteMart bears the risk of loss in transit, subject to Clause 9 (Damaged, Incomplete, or Wrong Orders).

9. Damaged, Incomplete, or Wrong Orders

9.1 The Buyer is requested to **inspect the Product at the time of delivery** and report any issue (physical damage, missing item, or wrong item) at the doorstep or within **forty-eight (48) hours** of delivery, whichever is earlier.

9.2 Reporting channels: (a) Email: [support@bytemart.in] (b) “My Orders” → “Report an Issue”

9.3 Issues must be reported within **fourteen (14) calendar days** of delivery in accordance with the Return, Refund and Replacement Policy. Issues reported beyond the 14-day Reporting Window may not be eligible for return, replacement, or refund, except in cases covered by applicable manufacturer warranty.

9.4 Resolution of damaged, incomplete, or wrong Orders is governed by the **Return, Refund and Replacement Policy**.

10. Pre-Orders & Back-Orders

10.1 Products marked as “**Pre-Order**” or “**Back-Order**” are not immediately available for delivery. The estimated dispatch date is displayed on the Product page.

10.2 The delivery timeframe for Pre-Order and Back-Order Products shall be communicated separately and may be longer than the standard Fast or Regular Delivery windows.

10.3 Pre-Order and Back-Order Products are subject to the **Cancellation Policy** and may be cancelled at any time within the delivery window.

10.4 Pre-Orders During Sales

10.4.1 During a promotional sale (including but not limited to festive sales, flash sales, anniversary sales, and clearance sales), ByteMart may, at its sole discretion, **accept or not accept** Pre-Orders for selected Products.

10.4.2 Where Pre-Orders are accepted during a sale, the Buyer may place a Pre-Order through the Platform during the active promotional period. The Pre-Order will be honoured at the **promotional price**, subject to stock and the terms of the Pre-Order.

10.4.3 Where Pre-Orders are **not accepted** during a sale, the Platform shall not display any “Pre-Order” or “Notify Me” option for the affected Product(s). The Buyer may purchase the Product only when (and if) it becomes available for regular sale at the regular price.

10.4.4 For the avoidance of doubt, the general rules on offers and promotions in Clause 10 of the Payment and Pricing Policy apply to Pre-Orders placed during a sale.

11. Delivery to Multiple Addresses

11.1 ByteMart currently supports delivery to a single address per Order. If the Buyer wishes to ship Products to multiple addresses, separate Orders must be placed.

12. Change of Delivery Address

12.1 The Buyer may request a change of delivery address **prior to dispatch** by contacting [support@bytemart.in]. ByteMart may, at its sole discretion, accept or reject the request.

12.2 **Once an Order has been dispatched from the warehouse, the Buyer cannot request a change of delivery address.** The Order shall be delivered to the address on file at the time of dispatch, and any redirection request thereafter shall not be entertained.

12.3 If the Buyer is unavailable at the dispatch-time address, the standard failed-delivery and RTO process under Clauses 7 and 8 shall apply. The Order may be cancelled and refunded in accordance with the Cancellation Policy, with the Fast Delivery charge and (where applicable) the COD Charge not refunded, in accordance with the Payment and Pricing Policy.

13. International Shipping

13.1 ByteMart currently does not offer international shipping. Products are delivered within the territory of India only.

14. Compliance Disclosures

14.1 In accordance with the **E-Commerce Rules, 2020**, ByteMart displays the following information on every Product page and at checkout:

- (a) Name and principal address of ByteMart;
 - (b) GSTIN, CIN, and other statutory registration numbers;
 - (c) Country of origin of each Product;
 - (d) Delivery options, charges, and estimated timelines;
 - (e) Grievance Officer contact details.
-

15. Force Majeure

15.1 ByteMart shall not be liable for any delay or failure in delivery caused by force majeure events, as set out in Clause 20 of the Terms and Conditions.

16. Contact

16.1 For all shipping and delivery related queries, please contact:

ByteMart Customer Support Email: [support@bytemart.in] Phone: [PHONE]
Hours: [DAYS / TIMINGS]

End of Shipping & Delivery Policy

ByteMart — Return, Refund & Replacement Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Consumer Protection Act, 2019 (rights of consumers, including right to seek redressal against defective goods, unfair trade practice, etc.) · Consumer Protection (E-Commerce) Rules, 2020 (Reg. 5(3) — return policy; Reg. 9 — refund) · Indian Contract Act, 1872 (defect, failure of consideration) · Sale of Goods Act, 1930 (conditions and warranties) · Bureau of Indian Standards Act, 2016 (product standards).

1. Scope

1.1 This Return, Refund and Replacement Policy (“**Return Policy**”) governs the conditions, process, and timelines applicable to returns, refunds, and replacements of Products purchased on the ByteMart Platform.

1.2 This Return Policy forms an integral part of the ByteMart Terms and Conditions. In the event of a conflict, this Return Policy shall prevail for matters relating to returns, refunds, and replacements.

2. Eligible Reasons for Return

2.1 ByteMart accepts return requests **only** in the following circumstances:

- (a) **Physical Damage** — the Product is delivered in a damaged condition (cracked, broken, dented, water-damaged, or otherwise physically compromised);
- (b) **Incomplete Order** — one or more items in a multi-item Order are missing at the time of delivery; or
- (c) **Wrong Product** — the Product delivered does not match the Product ordered (different model, variant, colour, size, or configuration).

2.2 Returns for reasons other than those listed in Clause 2.1 (e.g., “change of mind”, buyer’s remorse, or non-defect-related dissatisfaction) are **not** accepted, except where required by Applicable Law.

3. Reporting Window

3.1 Any replacement or refund request under Clause 2 must be submitted to ByteMart **by email** within **fourteen (14) calendar days** of delivery ("**Reporting Window**").

3.2 Reporting channel (for replacement and refund requests only): (a) **Email:** [support@bytemart.in] (mandatory channel for replacement and refund requests)

For general queries (order tracking, delivery status, account questions), Buyers may continue to use: (b) **Portal:** "My Orders" → "Report an Issue" on the Platform (for status / tracking) (c) **Phone:** [PHONE] (for general queries, not for replacement/refund requests)

3.3 The replacement or refund request email must include, **as a mandatory requirement:** (a) Order number; (b) Description of the issue; (c) **Photographs of the box** (outer packaging) showing the Product inside, the tamper seal/condition, and the shipping label; (d) **Photographs of the Product** clearly showing the damage, defect, missing accessories, wrong version, or wrong item (close-up shots and wide shots); (e) Photograph of the **serial number / IMEI / model number** label of the Product (where applicable); (f) Photograph of all contents of the box (in case of missing items); and (g) Short video (optional but recommended for high-value items).

3.4 **Photographs and attachments are mandatory** for any refund or replacement request for a delivered item. A return, refund, or replacement request submitted **without photographs of both the box and the Product** shall be deemed incomplete and shall not be processed until such photographs are provided. ByteMart may, at its sole discretion, request additional photographs or video evidence to substantiate the claim.

3.5 Replacement or refund requests submitted **after the 14-day Reporting Window** may not be eligible for return, replacement, or refund, except in cases covered by an applicable manufacturer warranty.

3.6 The Buyer must retain the Product, all original packaging, all accessories, all documentation, and the shipping label until the return, refund, or replacement is fully processed. Failure to retain the Product or its packaging may result in rejection of the claim.

4. Resolution: Replacement

4.1 For Products reported under Clause 2, ByteMart's default resolution is **replacement** of the Product, subject to stock availability of the same SKU (or an equivalent Product of equal or greater value, at ByteMart's discretion).

4.2 Replacement is offered **free of cost**, including: (a) No additional Product price; (b) No shipping or reverse-shipping charges.

4.3 If the Buyer refuses the replacement, ByteMart is not obligated to offer a refund in lieu of replacement, except where the replacement is unavailable (see Clause 5).

4.4 Missing Original Accessories or Product Documentation

4.4.1 If any original accessories, cables, adapters, manuals, warranty cards, driver CDs, or other product documentation that are part of the Product as shipped by the manufacturer are missing from the delivered box, the Buyer may report the issue in accordance with Clause 3.

4.4.2 The report **must include photographs of the box** (showing the serial number label, the accessory list printed on the box, where present, and the tamper seal) **and photographs of the contents of the box** clearly showing the items that were actually delivered.

4.4.3 Upon receipt of sufficient proof, ByteMart shall arrange delivery of the **missing item only**, and shall **not** offer a complete replacement of the Product. The Product itself shall be retained by the Buyer.

4.4.4 Delivery of the missing item shall be made within 5-10 business days of verification, subject to availability. If the missing item is out of stock, ByteMart shall, at its sole discretion: (a) Arrange a suitable equivalent; (b) Issue a partial refund equal to the value of the missing

accessory; or (c) Offer the Buyer the option to keep the Product and receive a discount coupon for future purchases.

4.4.5 No replacement of the main Product shall be offered under this Clause, as the Product itself is functional and accepted by the Buyer; the issue is limited to a missing accessory or document.

4.5 Same Product, Different Version Delivered

4.5.1 If the Buyer receives a Product that is the same brand and family but a **different version** (e.g., different generation, configuration, capacity, region variant, or colourway) from the one ordered, the Buyer may report the issue in accordance with Clause 3. The report must include photographs of the box and the Product showing the version/model number and configuration.

4.5.2 Upon verification, ByteMart shall arrange a **replacement of the ordered Product**.

4.5.3 The Buyer shall return the delivered Product (the wrong-version Product) in its **original condition**, including: (a) Original packaging with all original accessories, manuals, labels, and tamper seals intact; (b) No signs of use, wear, scratches, or damage; (c) All freebies, coupons, or bundled items that were part of the original delivery.

4.5.4 If the returned Product is not in its original condition, ByteMart may **reject the replacement** at its sole discretion. The rejection may be communicated to the Buyer with photographic or video evidence of the condition of the returned Product.

4.5.5 If the ordered Product (correct version) is **out of stock**, ByteMart shall offer a **refund of the invoice amount** (Product price + taxes + original delivery charges, if any), in accordance with Clause 5. No Fast Delivery charge refund shall apply unless the conditions of the Shipping and Delivery Policy are met.

5. Resolution: Refund When Out of Stock

5.1 If the damaged, incomplete, or wrong Product is **out of stock** and cannot be replaced within a reasonable time, ByteMart shall offer a **complete refund** of the Product price, including: (a) The Product price; (b) Taxes (GST) charged on the Product; (c) Original delivery charges, if any.

5.2 The Fast Delivery charge is refunded only in accordance with Clause 3.3 of the Shipping and Delivery Policy, regardless of the resolution path.

5.3 Refunds shall be processed to the original payment method used at the time of Order placement.

6. Refund Timelines

6.1 Once a refund ticket is **initiated**, the refund may take **3-7 business days** to be credited to the Buyer's account due to bank processing timelines.

6.2 ByteMart shall initiate refunds as quickly as possible, but the final crediting of the refund is subject to the timelines of the Buyer's bank or payment instrument issuer. ByteMart is not responsible for delays attributable to banks, payment gateways, or card networks.

6.3 The overall return-to-refund processing time (from return pickup to refund initiation) is up to **5-7 business days**.

6.4 For COD Orders, refunds shall be processed via UPI, NEFT, or RTGS to a verified bank account, in accordance with the timelines set out in Clause 6.1.

7. Refunds for Cancelled Orders

7.1 Refunds for Orders cancelled in accordance with the Cancellation Policy shall be processed **without any charge** to the Buyer.

7.2 The refund amount shall include: (a) The Product price; (b) Taxes charged on the Product; (c) Original delivery charges, if any (subject to the Cancellation Policy).

7.3 Refund timeline: 3-7 business days from initiation, subject to bank processing.

8. No Refund for Product Damage

8.1 ByteMart **does not offer monetary refunds for damaged Products**. Damaged Products are eligible for **replacement only**, in accordance with Clause 4.

8.2 A monetary refund shall be offered only if the Product or its replacement is **out of stock** (Clause 5).

8.3 This clause is without prejudice to any rights or remedies available to the Buyer under the Consumer Protection Act, 2019, or any other Applicable Law.

9. Return Pickup & Reverse Logistics

9.1 For approved returns, ByteMart shall arrange reverse pickup from the Buyer's delivery address at no cost to the Buyer, typically within 3-5 business days of approval.

9.2 The Buyer shall: (a) Keep the Product in its original packaging with all accessories, manuals, warranty cards, and freebies intact; (b) Affix the return label provided by ByteMart (where applicable); (c) Hand over the Product to the logistics partner during the scheduled pickup.

9.3 If reverse pickup is not serviceable at the Buyer's pincode, the Buyer may be required to self-ship the Product. ByteMart shall reimburse reasonable self-shipping costs upon verification, in accordance with our internal policy.

10. Condition of Returned Products

10.1 The returned Product must be in the same condition as delivered, with all original packaging, accessories, manuals, warranty cards, and freebies.

10.2 Products that show signs of use, damage caused after delivery, missing accessories, or tampering shall be rejected and returned to the Buyer without refund or replacement.

10.3 ByteMart reserves the right to inspect the returned Product before processing a refund or replacement.

11. Non-Returnable / Non-Refundable Items

11.1 The following categories of Products are generally **not eligible** for return, refund, or replacement under this Return Policy, except where the Product is delivered damaged, incomplete, or wrong:

- (a) **Digital products** — including software licenses, digital game keys, gift cards, prepaid recharge, and subscription codes (once the code/key has been delivered or revealed);
- (b) **Perishable goods**;
- (c) **Personal care and hygiene products** that have been opened or used;
- (d) **Products marked as "Final Sale", "Non-Returnable", or "As-Is"** on the Product page;
- (e) **Customised or special-order Products**;

(f) **Refurbished or open-box Products** sold with a separate disclosure on the Product page.

11.2 Returns of items covered by Clauses 11.1(a)–(f) shall be governed by the specific disclosures on the Product page and any separate terms agreed at the time of purchase.

12. Manufacturer Warranty & Post-Sales Service

12.1 **ByteMart is a retailer** of the Products listed on the Platform. ByteMart is **not** the manufacturer of the Products and does not provide any warranty or post-sales service in its own name, except where expressly stated on a specific Product page.

12.2 The **original manufacturer** of the Product is solely responsible for: (a) The product warranty (including the warranty period, scope, and exclusions) as set out in the manufacturer's warranty terms; (b) Post-sales service, including troubleshooting, repair, replacement of defective components, and software support; (c) Any product liability arising from a manufacturing defect, design defect, or inadequate instructions or warnings.

12.3 The manufacturer's warranty terms (including the warranty card, terms document, or warranty section on the manufacturer's website) shall be the sole contract between the Buyer and the manufacturer in respect of warranty and post-sales service.

12.4 No Physical Damage at Delivery, but Subsequent Software or Hardware Issue

12.4.1 If the Product is delivered in a **non-damaged condition** (i.e., no physical damage at the time of delivery, as verified at the doorstep or within the 14-day Reporting Window) and the Product **subsequently develops a software or hardware issue** during normal use, such issue is **outside the scope of this Return Policy**.

12.4.2 In such cases, the Buyer should **contact the original manufacturer** of the Product directly for warranty service and troubleshooting.

12.4.3 The Buyer shall use the **ByteMart tax invoice** (issued under Clause 12 of the Payment and Pricing Policy) as **proof of purchase** to claim the applicable manufacturer warranty. The ByteMart invoice contains the Product description, model number, serial number (where recorded), purchase date, and price, and shall be accepted by the manufacturer as valid proof of purchase for warranty purposes.

12.4.4 ByteMart shall, on request, assist the Buyer by: (a) Providing a duplicate copy of the invoice; (b) Confirming the purchase date, Product details, and warranty period to the manufacturer (with the Buyer's consent); and (c) Facilitating communication between the Buyer and the manufacturer's service centre.

12.4.5 ByteMart does **not** provide on-site service, repair, or technical support for software or hardware issues, and is not liable for any costs, damages, or losses arising from such issues, except where the issue is attributable to ByteMart's own act or omission.

12.5 Limitation

12.5.1 Nothing in this Clause 12 limits the Buyer's rights under the Consumer Protection Act, 2019, including the right to seek redressal against product defects, deficiency in service, or unfair trade practice, against either ByteMart or the manufacturer.

12.5.2 Where the Product is a "refurbished" or "open-box" Product, the warranty terms (if any) shall be as specifically disclosed on the Product page, and may be more limited than the manufacturer's standard warranty.

13. Defective Products (Beyond 14 Days)

13.1 If a Product develops a defect after the 14-day Reporting Window and there is no physical damage attributable to transit, the issue shall be treated as a **manufacturer warranty claim** in accordance with Clause 12. The Buyer should:

- (a) Contact the original manufacturer of the Product using the contact details on the warranty card, the Product packaging, or the manufacturer's official website;
- (b) Use the **ByteMart tax invoice** as proof of purchase and warranty start date; and
- (c) Follow the manufacturer's troubleshooting and service process.

13.2 Where the Buyer is unable to reach the manufacturer or requires assistance, ByteMart shall, on a best-efforts basis, facilitate communication with the manufacturer's service centre, including providing a duplicate invoice, confirming the purchase date, and escalating the Buyer's concern to the manufacturer's customer support.

13.3 ByteMart's role is **limited to facilitation**. ByteMart does not provide repair, replacement, or refund for defects that arise after the 14-day Reporting Window and that are attributable to manufacturing, design, software, firmware, normal wear and tear, or any cause not attributable to ByteMart.

13.4 The Buyer's statutory rights under the Consumer Protection Act, 2019 (including the right to file a complaint against a defect or unfair trade practice) are not affected by this Clause and may be exercised against either the manufacturer or ByteMart, as applicable.

14. Chargebacks

14.1 If the Buyer initiates a chargeback with their bank or card issuer without first contacting ByteMart and exhausting the remedies under this Return Policy, ByteMart reserves the right to: (a) Dispute the chargeback; (b) Suspend the Buyer's account; and (c) Pursue recovery of costs, including the Product price, shipping charges, and chargeback processing fees.

14.2 Buyers are encouraged to contact ByteMart first to resolve any issue before initiating a chargeback.

15. Refusal of Return

15.1 ByteMart reserves the right to refuse a return request if: (a) The request is made outside the 14-day Reporting Window; (b) The Product is not in its original condition; (c) The Buyer cannot provide adequate evidence of the reported issue; (d) The request is for a reason not covered under Clause 2; (e) The Buyer has previously abused the return process.

16. Effect of Return on Promotional Benefits

16.1 If the Order was placed using a coupon, promotional code, or freebie, the coupon value or freebie benefit may be reversed or adjusted in case of a partial return, in accordance with the specific terms of the promotion.

17. Contact

17.1 For all return, refund, and replacement queries, please contact:

ByteMart Customer Support Email: [support@bytemart.in] Phone: [PHONE]
Hours: [DAYS / TIMINGS]

17.2 If unsatisfied with our response, please refer to the **Grievance Redressal Policy** for further escalation options, including the **National Consumer Helpline (1915)**, **INGRAM portal**, and **e-Daakhil**.

End of Return, Refund & Replacement Policy

ByteMart — Cancellation Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Consumer Protection Act, 2019 (right to information, right to be heard) · Consumer Protection (E-Commerce) Rules, 2020 (Reg. 5 — disclosure of cancellation policy) · Indian Contract Act, 1872 (revocation of offer, breach of contract).

1. Scope

1.1 This Cancellation Policy (“**Cancellation Policy**”) governs the conditions, process, and timelines applicable to the cancellation of Orders placed on the ByteMart Platform.

1.2 This Cancellation Policy forms an integral part of the ByteMart Terms and Conditions. In the event of a conflict, this Cancellation Policy shall prevail for matters relating to Order cancellation.

2. Stages of an Order

2.1 For the purpose of this Cancellation Policy, an Order passes through the following stages:

- (a) **Order Placed** — the Buyer has placed the Order and payment (if pre-paid) has been authorised;
 - (b) **Order Confirmed** — ByteMart has accepted the Order and issued an Order Confirmation;
 - (c) **Order Packed** — the Product has been packed and is awaiting pickup by the logistics partner;
 - (d) **Order Dispatched** — the Product has been handed over to the logistics partner and is in transit;
 - (e) **Out for Delivery** — the Product is on the logistics partner’s vehicle for delivery to the Buyer’s address;
 - (f) **Delivered** — the Product has been delivered to and accepted at the Buyer’s address.
-

3. Cancellation Window

3.1 A Buyer may request cancellation of an Order at any time **within the delivery window** — that is, from the moment the Order is placed until the Order is actually delivered to the Buyer (or refused at the door). Once the Order has been delivered, the cancellation pathway under this Policy shall no longer apply.

3.2 The “**delivery window**” means the period commencing on Order placement and ending on the moment of actual delivery (or refusal of delivery) at the Buyer’s address. This includes all of the following stages: (a) Order Placed; (b) Order Confirmed; (c) Order Packed; (d) Order Dispatched (in transit); (e) Out for Delivery.

3.3 Cancellation within the delivery window may be requested via: (a) The “**My Orders**” section of the Buyer’s account on the Platform (recommended for pre-dispatch cancellations); or (b) Email to [support@bytemart.in].

3.4 Cancellation within the delivery window is **free of charge**. No cancellation fee shall be levied on the Buyer.

4. Refund for Cancellation Within the Delivery Window

4.1 For any cancellation within the delivery window, ByteMart shall process a **full refund** of: (a) The Product price; (b) Taxes (GST) charged on the Product; (c) Delivery charges (Fast Delivery charge and Regular Delivery charge, if any), including the COD Charge in the case of COD Orders.

4.2 No charge shall be levied on the Buyer for cancellation within the delivery window.

4.3 Refund timeline: **3-7 business days** from initiation, subject to bank processing timelines.

4.4 For COD Orders cancelled within the delivery window, no payment is due from the Buyer. If the Buyer had pre-paid the Order value, the full amount shall be refunded in accordance with Clause 4.1.

5. Cancellation on the Day of Delivery

5.1 If the Buyer wishes to cancel an Order on the **scheduled delivery day** (i.e., when the Order is in the “Out for Delivery” stage), ByteMart reserves the right to **deny delivery** at the time of attempted delivery.

5.2 Where delivery is denied at the door: (a) The Order shall be treated as cancelled; (b) The Product shall be returned to the warehouse; (c) Refund shall be processed in accordance with Clause 4, subject to verification by the logistics partner.

5.3 Where the Order is **accepted at the door** (i.e., the Buyer or any person at the delivery address takes delivery of the Product): (a) The Order shall be deemed **delivered**; (b) The cancellation pathway under this Cancellation Policy shall **no longer apply**; (c) The Buyer may not return the Product under the cancellation provisions; (d) Any post-delivery return request shall be governed exclusively by the **Return, Refund and Replacement Policy** (and shall be subject to the limited grounds set out therein, i.e., physical damage, incomplete Order, or wrong Product, and the 14-day Reporting Window).

6. Cancellation by ByteMart

6.1 ByteMart reserves the right to cancel an Order at any time prior to dispatch (or, where necessary, recall an in-transit Order), with or without notice, in the following circumstances:

- (a) The Product is out of stock or unavailable;
- (b) The pricing displayed on the Product page is incorrect due to a technical or human error;
- (c) The Buyer’s address is not serviceable;
- (d) The Buyer’s payment cannot be authorised, captured, or verified;
- (e) The Order is suspected to be fraudulent, unauthorised, or in violation of these Terms;
- (f) The Order is in violation of Applicable Law or any restriction imposed by a Reseller, OEM, or governmental authority;
- (g) Force majeure events prevent fulfilment.

6.2 In the event of cancellation by ByteMart, the Buyer shall be entitled to a **full refund** of all amounts paid, in accordance with Clause 4. ByteMart shall not be liable for any consequential loss or damage arising from such cancellation.

6.3 ByteMart may, at its sole discretion, offer the Buyer a substitute Product of equivalent or higher specifications at the same price, in lieu of cancellation.

7. Cancellation of Pre-Orders & Back-Orders

7.1 Pre-Order and Back-Order Products may be cancelled at any time within the delivery window, in accordance with Clause 3.

7.2 The refund for cancelled Pre-Order and Back-Order Products shall be processed in accordance with Clause 4.

7.3 If the Pre-Order or Back-Order Product is delayed beyond the estimated dispatch date by more than fifteen (15) business days, the Buyer may, in addition to the right to cancel, request a refund with a reasonable compensation for the delay, where appropriate.

8. Cancellation of Bulk / B2B Orders

8.1 Bulk Orders, corporate Orders, and B2B Orders may be subject to additional cancellation terms communicated at the time of Order placement, including but not limited to non-cancellability of custom-configured Products.

8.2 For the avoidance of doubt, all statutory rights of the Buyer under the Consumer Protection Act, 2019, and other Applicable Law shall continue to apply.

9. Effect of Cancellation on Promotional Benefits

9.1 If the cancelled Order was placed using a coupon, promotional code, cashback, or freebie, the benefit may be reversed or adjusted in accordance with the specific terms of the promotion.

9.2 Cancelled Orders shall not be counted towards minimum-purchase thresholds for future promotions.

10. Chargebacks & Disputes

10.1 If the Buyer initiates a chargeback or dispute with their bank or card issuer in respect of an Order that ByteMart has processed in good faith (including a delivered Order), ByteMart reserves the right to: (a) Dispute the chargeback with documentary evidence; (b) Suspend the Buyer's account pending investigation; and (c) Pursue recovery of costs, including the Product price, shipping charges, and chargeback processing fees.

10.2 Buyers are encouraged to contact ByteMart first to resolve any issue before initiating a chargeback.

11. Cancellations & Consumer Rights

11.1 Nothing in this Cancellation Policy shall be construed to limit or override the statutory rights of the Buyer under the Consumer Protection Act, 2019, including the right to: (a) Be protected against unfair trade practices; (b) Be informed of the cancellation policy prior to purchase; (c) Seek redressal against defective goods or deficient services.

11.2 For the avoidance of doubt, the Buyer's right to seek redressal before the consumer forums shall not be affected by this Cancellation Policy.

12. Contact

12.1 For all cancellation related queries, please contact:

ByteMart Customer Support Email: [support@bytemart.in] Phone: [PHONE]
Hours: [DAYS / TIMINGS] Portal: “My Orders” → “Cancel Order”

12.2 If unsatisfied with our response, please refer to the **Grievance Redressal Policy** for further escalation options.

End of Cancellation Policy

ByteMart — Payment & Pricing Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Payment and Settlement Systems Act, 2007 · RBI Master Directions on Digital Lending / Online Payment 2021 · RBI Tokenisation Directions 2021 · CGST Act, 2017 (TCS under Section 52 for e-commerce operators; tax invoice under Section 31) · CGST Rules, 2017 (invoice format) · Income Tax Act, 1961 (TDS under Section 194-O for e-commerce participants) · Foreign Exchange Management Act, 1999 (cross-border payments, if any) · IT Act, 2000 (electronic records, digital signatures).

1. Scope

1.1 This Payment and Pricing Policy (“**Payment Policy**”) governs the prices, taxes, payment methods, processing, security, and related matters for transactions on the ByteMart Platform.

1.2 This Payment Policy forms an integral part of the ByteMart Terms and Conditions. In the event of a conflict, this Payment Policy shall prevail for matters relating to payments and pricing.

2. Pricing

2.1 All prices displayed on the Platform are in **Indian Rupees (₹)** and are inclusive of all applicable taxes, including Goods and Services Tax (“**GST**”), unless expressly stated otherwise.

2.2 Prices displayed on the Product page are the maximum retail price (“**MRP**”) as declared on the Product under the Legal Metrology (Packaged Commodities) Rules, 2011. ByteMart may offer the Product at a price lower than the MRP.

2.3 The price applicable to an Order is the price displayed at the time of Order placement. ByteMart reserves the right to modify prices at any time prior to Order acceptance.

2.4 Despite ByteMart’s best efforts, a small number of Products may be mispriced. If a Product is listed at an incorrect price due to a technical or human error, ByteMart reserves the right to: (a) Cancel the Order and notify the Buyer of the cancellation, with a full refund; or (b) Contact the Buyer to confirm the corrected price before dispatch.

2.5 ByteMart is not obligated to honour a mispriced Order.

3. Taxes

3.1 GST is charged on all Products and on delivery charges, as applicable, in accordance with the **CGST Act, 2017**, and the relevant state GST laws.

3.2 The **HSN (Harmonised System of Nomenclature) code** for each Product is displayed on the Product page or in the tax invoice, as required.

3.3 ByteMart shall issue a **tax invoice** in accordance with Rule 46 of the CGST Rules, 2017, containing: (a) Name, address, GSTIN, and PAN of ByteMart; (b) Invoice number and date; (c) Buyer's name, billing address, shipping address, and GSTIN (if provided); (d) HSN code, description, quantity, unit price, and taxable value of each Product; (e) GST rate and amount (CGST, SGST/UTGST, or IGST, as applicable); (f) Total invoice value; (g) Place of supply; (h) Whether the transaction is intra-state, inter-state, or import.

3.4 For B2B Buyers, GSTIN may be captured at checkout to enable issuance of a tax invoice and to support the Buyer's input tax credit ("**ITC**") claim, subject to verification.

3.5 Where ByteMart acts as an **e-commerce operator** under Section 9(4) of the CGST Act, 2017, it shall collect tax at source ("**TCS**") at the rate notified by the Government and deposit the same with the Government. The TCS amount shall be reflected in the tax invoice and in the Buyer's GSTR-2A / 2B (as applicable).

4. Payment Service Provider

4.1 ByteMart uses **Razorpay ("Payment Service Provider" or "PSP")** as its payment gateway and payment service provider for all online (pre-paid) transactions on the Platform.

4.2 The PSP processes payment transactions on behalf of ByteMart in compliance with the **Reserve Bank of India ("RBI")** regulations, including the **Payment and Settlement Systems Act, 2007**, the **RBI Tokenisation Directions, 2021**, the **RBI Master Directions on Prepaid Payment Instruments ("PPIs"), 2021**, and the **RBI Customer Protection Framework for Digital Payment Transactions, 2021**.

4.3 ByteMart does not store your complete card or banking credentials. Such data is handled solely by the PSP in accordance with PCI-DSS and applicable RBI guidelines.

4.4 By placing an Order, you agree to be bound by the PSP's terms of service and privacy policy in addition to these Terms. The PSP's terms are available on the Razorpay website.

4.5 ByteMart is not a bank and does not itself hold or manage the Buyer's funds. All payments are received and held by the PSP in its nodal/escrow account and remitted to ByteMart in accordance with RBI guidelines.

5. Accepted Payment Methods

5.1 ByteMart accepts the following payment methods for pre-paid Orders, subject to availability and Buyer eligibility:

- (a) **Debit Cards** — Visa, MasterCard, RuPay, Maestro;
- (b) **Credit Cards** — Visa, MasterCard, RuPay, American Express;
- (c) **Unified Payments Interface ("UPI")**.

5.2 No other payment methods (including but not limited to net banking, mobile wallets, pre-paid payment instruments, EMI, BNPL, or cheques) are accepted at this time.

5.3 ByteMart reserves the right to add, modify, or remove payment methods at any time, with or without notice.

5.4 Where a payment is made using a debit or credit card issued outside India, the transaction is subject to the RBI's foreign exchange regulations and to the cross-border processing terms of the card network and the Buyer's issuing bank.

6. Cash on Delivery (“COD”)

6.1 **Cash on Delivery is available** on the Platform subject to pincode serviceability, Order value limits, and verification by ByteMart or the PSP.

6.2 An **additional non-refundable charge of ₹100 (Indian Rupees One Hundred only)** shall be levied on every COD Order (“**COD Charge**”). The COD Charge is a delivery-related service charge and is applicable to all COD Orders regardless of the value of the Order, the delivery location, or the mode of payment chosen for the Order value at the time of delivery.

6.3 The COD Charge is clearly displayed in the Order summary at checkout, prior to Order placement.

6.4 The COD Charge is **not refundable** in the event of: (a) Cancellation of the COD Order after dispatch (subject to the Cancellation Policy); (b) Refusal of the COD Order at the time of delivery; (c) Return-to-Origin (“RTO”) of the COD Order due to Buyer unavailability, refusal, or inability to pay.

6.5 The COD Charge shall be **refunded** only where the COD Order is cancelled by ByteMart (e.g., out of stock, pricing error, non-serviceable pincode, or inability to verify the Order), in accordance with the Cancellation Policy.

6.6 **Mode of payment for the Order value at the time of delivery:** The Buyer may pay the Order value (Product price + taxes) at the time of delivery using **UPI or Card** (debit or credit), as facilitated by the delivery agent on a handheld terminal or by any other means as communicated. The **₹100 COD Charge remains applicable in all such cases**, because the COD Charge is a delivery-related service charge and not a cash-handling charge. The COD Charge is independent of, and additional to, the mode of payment chosen by the Buyer for the Order value.

6.7 COD Orders are subject to verification by ByteMart and/or the PSP. ByteMart reserves the right to: (a) Cancel any COD Order that fails verification, in accordance with the Cancellation Policy; (b) Impose a maximum Order value limit on COD Orders; (c) Restrict COD availability for specific Products, categories, or pincodes; (d) Withhold COD facility from Buyers with a history of COD refusals, RTOs, or chargebacks.

6.8 In the event of non-payment, refusal, or inability to pay at the time of delivery, the Order shall be treated as RTO, and Clause 6.4 shall apply. ByteMart may, at its discretion, suspend the Buyer’s COD facility for future Orders.

6.9 The PSP does not process the COD Order value; the COD Order value is collected by ByteMart’s logistics partner at the time of delivery. The PSP is engaged solely for verification, fraud-screening, and post-delivery reconciliation of COD Orders.

7. Payment Security

7.1 All payment transactions on the Platform are processed through **PCI-DSS compliant third-party payment gateway providers** (Razorpay). ByteMart does not store your complete card or banking credentials on its servers.

7.2 In compliance with the **RBI Tokenisation Directions, 2021**, ByteMart supports **card tokenisation** for repeat Customers. Tokens are stored by the payment gateway and/or the card network, not by ByteMart.

7.3 All payment information is transmitted over **TLS 1.2 or higher** and protected by industry-standard encryption.

7.4 ByteMart does not store CVV, full card numbers (except the last 4 digits, where required for display), or full bank account numbers.

8. Failed Transactions

8.1 If a payment is initiated but the transaction fails (e.g., due to insufficient funds, network error, or bank decline), the Order shall not be confirmed, and the Buyer's account shall not be debited.

8.2 In the event of a duplicate debit or an unauthorised debit, the Buyer should immediately contact [support@bytemart.in] with the transaction reference. ByteMart shall investigate and facilitate a refund in accordance with the Return, Refund and Replacement Policy and the RBI's customer protection framework.

8.3 ByteMart shall not be liable for delays or losses arising from failed transactions attributable to the Buyer's bank, payment instrument issuer, or network provider.

9. Pricing Disclosures (E-Commerce Rules, 2020)

9.1 In accordance with **Reg. 5 of the Consumer Protection (E-Commerce) Rules, 2020**, ByteMart displays the following information on every Product page and at checkout:

- (a) Clear description of the Product;
- (b) MRP and selling price;
- (c) Total price payable (including taxes and delivery charges);
- (d) Country of origin;
- (e) Name and address of the seller (ByteMart);
- (f) GSTIN, CIN, and other statutory registration numbers;
- (g) Available payment methods;
- (h) Delivery options, charges, and timelines;
- (i) Return, refund, and cancellation policy;
- (j) Grievance Officer contact details.

9.2 No hidden charges are added at checkout. The total price displayed at the payment step is the final amount payable by the Buyer (subject to the COD Charge under Clause 6 where applicable).

10. Discounts, Coupons & Promotional Offers

10.1 Discounts, coupons, cashback, and promotional offers are governed by the specific terms communicated at the time of the offer, including but not limited to: (a) Eligibility (Products, categories, Users); (b) Validity period; (c) Minimum order value (if any); (d) Maximum discount value (if any); (e) One-time or repeat use; (f) Combination with other offers; (g) Cancellation and refund effect (see the Cancellation Policy and the Return, Refund and Replacement Policy).

10.2 ByteMart reserves the right to modify, withdraw, or cancel any offer at any time, with or without notice, in accordance with Applicable Law.

10.3 Offers are not exchangeable for cash and are non-transferable unless expressly stated.

10.4 Promotional discounts, where applicable, are applied only to the Product price and taxes, and not to the COD Charge or delivery charges, unless expressly stated.

10.5 Promotional Sales — Limited Period, Limited Stock, No Price Difference Refund

10.5.1 **Limited Period.** Pricing offered during a promotional sale (including but not limited to festive sales, flash sales, anniversary sales, clearance sales, and limited-time discount events) is available **only for the period of the promotion**, as communicated on the Platform and in the offer terms. The start time, end time, and duration of each promotion are determined solely by ByteMart.

10.5.2 **Limited Stock.** Promotional pricing is available **only for the limited stock** allocated to the promotion. ByteMart may, at its sole discretion, set per-User, per-Order, or per-Product purchase limits during a promotion.

10.5.3 Active Promotion Only. To avail of a promotional offer, the Buyer must place the Order and the Order must be confirmed (in accordance with the Terms) **while the promotion is active**. An Order is “placed during the promotion” only if: (a) The Order is confirmed by ByteMart (Order Confirmation) within the active promotion window; and (b) Payment (where pre-paid) is successfully captured by the PSP within the active promotion window.

10.5.4 No Price Difference Refund. If a Buyer places an Order for a Product **before the start** of a promotional sale or **after the end** of a promotional sale (or before/after the promotional stock is exhausted), the Order shall be charged at the **regular (non-promotional) price** in effect at the time of Order placement. **The Buyer shall not be eligible for any refund, credit, coupon, or adjustment representing the price difference** between the regular price and the promotional price.

10.5.5 No Post-Hoc Claims. ByteMart shall not entertain any claim, request, or complaint for a price difference refund, retroactive discount, or promotional adjustment in respect of an Order placed outside the active promotion window. Any such request shall be rejected.

10.5.6 Pre-Orders During Sales. The treatment of Pre-Orders placed during a sale is governed by Clause 10.4 of the Shipping and Delivery Policy. Where a Pre-Order is accepted during a sale, the Pre-Order will be honoured at the promotional price, subject to the terms of the Pre-Order and the promotion.

10.5.7 Display of Promotional Pricing. Promotional pricing shall be displayed clearly on the Product page, with the original (regular) price shown alongside the promotional price, in accordance with the Legal Metrology (Packaged Commodities) Rules, 2011, and the E-Commerce Rules, 2020.

11. International Cards & Cross-Border Payments

11.1 International credit and debit cards (issued by banks outside India) are accepted for Orders delivered within India, subject to RBI guidelines and the policies of the PSP.

11.2 The transaction amount shall be converted to Indian Rupees at the exchange rate applied by the Buyer’s card issuer. ByteMart is not responsible for any currency conversion charges, cross-border fees, or foreign exchange differentials applied by the Buyer’s bank or card issuer.

11.3 For cross-border payments, ByteMart complies with the **Foreign Exchange Management Act, 1999 (FEMA)** and the RBI’s relevant foreign exchange regulations.

11.4 UPI payments from non-resident accounts (NRE/NRO) are accepted only where supported by the Buyer’s bank and the UPI network.

12. Invoicing

12.1 A tax invoice shall be issued for every successful Order and sent to the Buyer’s registered email address.

12.2 The Buyer may also download the invoice from the “**My Orders**” section of their account.

12.3 Any error in the invoice (e.g., GSTIN, billing address) must be reported to [support@bytemart.in] within 48 hours of invoice issuance. ByteMart shall correct errors at its sole discretion, subject to the time limits prescribed under the CGST Act and Rules.

12.4 For COD Orders, the invoice shall include the COD Charge as a separate line item.

13. Chargebacks

13.1 If the Buyer initiates a chargeback with their bank or card issuer, ByteMart shall be entitled to: (a) Dispute the chargeback with documentary evidence (Order confirmation, dispatch

proof, delivery proof); (b) Suspend the Buyer's account pending investigation; and (c) Recover the Product price, shipping charges, and chargeback processing fees from the Buyer.

13.2 Buyers are encouraged to contact ByteMart first to resolve any issue before initiating a chargeback, in accordance with the RBI's customer protection framework.

14. Buyer Protection

14.1 Zero Liability: The Buyer shall have zero liability for unauthorised electronic payment transactions, subject to the conditions prescribed by the RBI.

14.2 Limited Liability: Where the unauthorised transaction is attributable to the Buyer's negligence (e.g., sharing of credentials, failure to notify a breach), the Buyer's liability shall be limited in accordance with the RBI's customer protection framework.

14.3 Reporting: Unauthorised transactions must be reported to ByteMart and the Buyer's bank within three (3) days of becoming aware of the transaction, in order to avail the benefits under Clauses 14.1 and 14.2.

15. Compliance

15.1 ByteMart, through the PSP, complies with all applicable RBI regulations, including but not limited to: (a) Payment and Settlement Systems Act, 2007; (b) RBI Master Direction on Issuance and Operation of PPIs, 2021 (in respect of the PSP); (c) RBI Tokenisation Directions, 2021; (d) RBI Customer Protection Framework for Digital Payment Transactions, 2021; (e) RBI directions, circulars, and Master Directions applicable to the PSP and to the payment methods listed in Clause 5; (f) Other RBI circulars, as applicable.

15.2 ByteMart does not currently offer BNPL, EMI, or any form of digital lending. Should ByteMart introduce such offerings in the future, the applicable RBI Master Direction on Digital Lending, 2022, and other relevant regulations shall be complied with, and these Terms shall be updated accordingly.

16. Contact

16.1 For all payment and pricing related queries, please contact:

ByteMart Customer Support Email: [support@bytemart.in] Phone: [PHONE]
Hours: [DAYS / TIMINGS]

16.2 Payment-related grievances may also be escalated to the **RBI Ombudsman** in accordance with the RBI Ombudsman Scheme.

End of Payment & Pricing Policy

ByteMart — Grievance Redressal Policy

Version: 1.0 **Last Updated:** [DD/MM/YYYY] **Effective Date:** [DD/MM/YYYY]

Statutory map (for internal use): Consumer Protection Act, 2019 (Part IV — Consumer Disputes Redressal Commissions) · Consumer Protection (E-Commerce) Rules, 2020 (Reg. 4 — appointment of grievance officer and grievance redressal mechanism) · IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 (Reg. 4(2) — grievance officer) · Digital Personal Data Protection Act, 2023 (grievance redressal and right to escalate to the Data Protection Board).

1. Scope

1.1 This Grievance Redressal Policy (“**Grievance Policy**”) describes the mechanism by which ByteMart receives, processes, and resolves complaints, grievances, and queries from Users in connection with the Platform, Products, Orders, deliveries, payments, refunds, and privacy.

1.2 This Grievance Policy is published in compliance with: (a) **Regulation 4 of the Consumer Protection (E-Commerce) Rules, 2020** (appointment of grievance officer and grievance redressal mechanism); (b) **Regulation 4(2) of the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021** (grievance officer for intermediaries); (c) **Section 12 of the Digital Personal Data Protection Act, 2023** (right to grievance redressal by Data Principal); (d) **Section 35 of the Consumer Protection Act, 2019** (consumer dispute redressal forums).

1.3 This Grievance Policy forms an integral part of the ByteMart Terms and Conditions.

2. Grievance Officer

2.1 ByteMart has appointed a **Grievance Officer** in accordance with the IT Rules 2021 and the E-Commerce Rules 2020. The Grievance Officer is the single point of contact for all consumer and data-related grievances.

2.2 Grievance Officer Details:

Name: [GRIEVANCE OFFICER NAME] **Designation:** Grievance Officer **Entity:** ByteMart [Private Limited / Limited] **Registered Office:** [ADDRESS], New Delhi, India **Email:** [grievance@bytemart.in] **Phone:** [PHONE] **Working Hours:** [DAYS / TIMINGS, e.g., Monday to Friday, 10:00 to 18:00 IST]

2.3 The Grievance Officer’s name, designation, and contact details are displayed: (a) On the Platform’s home page footer; (b) On the “Contact Us” page; (c) In the Terms and Conditions and Privacy Policy; (d) On every Product page; and (e) In every transactional email.

3. Channels for Filing a Grievance

3.1 Users may file a grievance through any of the following channels:

- (a) **Email:** [grievance@bytemart.in] (preferred channel — provides written record);
- (b) **Phone:** [PHONE] (during working hours);
- (c) **Postal:** Grievance Officer, [ADDRESS], New Delhi, India;
- (d) **Portal:** “Help & Support” or “My Orders” → “Report an Issue” on the Platform;
- (e) **Chat:** [If live chat is available]

3.2 The following information should be provided to enable prompt resolution: (a) Full name and registered email/mobile number; (b) Order number (if applicable); (c) Description of the grievance; (d) Date and time of the issue (if known); (e) Photographic or documentary evidence (if applicable); (f) Desired resolution.

4. Acknowledgement & Response Timelines

4.1 ByteMart shall **acknowledge** receipt of every grievance within **forty-eight (48) hours** of receipt, by email or SMS to the contact details provided by the User.

4.2 ByteMart shall endeavour to **resolve** every grievance within **thirty (30) days** of receipt, in accordance with the DPDPA and the E-Commerce Rules, 2020.

4.3 For specific categories of grievances, the following internal timelines shall apply:

Category	Acknowledgement	Resolution Target
Order not delivered / RTO	24 hours	5-7 business days
Damaged / wrong / incomplete Order	24 hours	5-7 business days
Refund not received	24 hours	3-7 business days
Payment / chargeback	24 hours	7-15 business days
Account access / deactivation	24 hours	7 business days
Privacy / data access / erasure	48 hours	30 calendar days
Warranty / manufacturer issue	48 hours	7-15 business days
Other	48 hours	30 calendar days

4.4 If the grievance cannot be resolved within the timelines specified in Clause 4.3, the User shall be informed of the reason for the delay and the revised expected timeline.

5. Escalation Matrix

5.1 If the User is not satisfied with the first response, or if the response is not received within the timelines set out in Clause 4, the User may escalate as follows:

Level 1 — Customer Support: [support@bytemart.in] / [PHONE] **Level 2 — Grievance Officer:** [grievance@bytemart.in] / [PHONE] **Level 3 — Head of Customer Experience:** [head.cx@bytemart.in] / [PHONE] **Level 4 — Designated Director / Nodal Officer:** [director@bytemart.in] / [PHONE]

5.2 Each escalation level shall respond within the timelines set out in Clause 4.3.

5.3 The User may also approach the statutory forums set out in Clause 6 at any stage, irrespective of the internal escalation.

6. Statutory Consumer Redressal Forums

6.1 Nothing in this Grievance Policy limits the User's right to seek redressal from the statutory forums established under the Consumer Protection Act, 2019. ByteMart shall cooperate with such forums in good faith.

6.2 National Consumer Helpline (NCH)

- (a) The National Consumer Helpline is a toll-free helpline operated by the Department of Consumer Affairs, Government of India.
- (b) **Helpline number: 1915** (toll-free, available in multiple languages).
- (c) Users may file a complaint by dialling 1915 or via the NCH website at <https://consumerhelpline.gov.in>.

6.3 INGRAM Portal

- (a) The **INGRAM (Integrated Grievance Redressal Mechanism) portal** is the centralised consumer complaint platform of the Government of India.
- (b) **URL:** <https://consumerhelpline.gov.in/consumer/index.php/ingram-portal>
- (c) Users may lodge complaints online, track status, and receive redressal through this portal.

6.4 e-Daakhil Portal

- (a) The **e-Daakhil portal** is the official portal for filing consumer complaints electronically before the Consumer Disputes Redressal Commissions.
- (b) **URL:** <https://edaakhil.nic.in/>

- (c) Users may file complaints in the District, State, or National Commission depending on the pecuniary value of the claim: - **District Commission:** Up to ₹1 crore; - **State Commission:** ₹1 crore to ₹10 crore; - **National Commission:** Above ₹10 crore.

6.5 Central Consumer Protection Authority (CCPA)

- (a) The CCPA, established under Section 10 of the Consumer Protection Act, 2019, may take suo motu cognizance of violations of consumer rights and unfair trade practices.
(b) Users may file complaints with the CCPA via the NCH / INGRAM portal or directly.

6.6 Department of Consumer Affairs – Pre-Litigation Mediation

- (a) ByteMart encourages the use of pre-litigation mediation through the Department of Consumer Affairs or other authorised mediation centres, in accordance with **Section 37(4) of the Consumer Protection Act, 2019** and the **Consumer Protection (Mediation) Rules, 2021**.
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7. Privacy & Data Grievances

7.1 Grievances related to privacy, personal data, and data principal rights under the DPDPA may be filed with the Grievance Officer in accordance with Clauses 3 and 4 above.

7.2 If the User is not satisfied with the response, the User may escalate the matter to the **Data Protection Board of India (“DPB”)** in accordance with Section 33 of the DPDPA.

7.3 The DPB may be contacted at <https://www.meity.gov.in/> (or the relevant official portal once notified by the Central Government).

8. Intermediary Grievances (IT Rules 2021)

8.1 In accordance with Regulation 4(2) of the IT Rules 2021, the Grievance Officer shall acknowledge grievances within twenty-four (24) hours of receipt and resolve them within fifteen (15) days of receipt.

8.2 Grievances may relate to: (a) Content on the Platform allegedly violating Applicable Law; (b) Privacy or data misuse; (c) Impersonation or identity theft; (d) Any other actionable concern within the scope of the IT Act, 2000, and the IT Rules 2021.

9. Record Keeping

9.1 ByteMart shall maintain a record of all grievances, including the date of receipt, nature of the grievance, resolution provided, and date of resolution, for a minimum period of **three (3) years** from the date of resolution, in accordance with the E-Commerce Rules 2020.

9.2 Such records shall be made available to the authorities upon request.

10. Restriction on Multiple Grievances

10.1 ByteMart reserves the right to refuse to entertain a grievance that has already been resolved in accordance with this Grievance Policy, or that is frivolous, vexatious, or abusive.

10.2 ByteMart shall not entertain multiple parallel grievances for the same issue.

11. No Adverse Action Against Whistle-blowers

11.1 ByteMart shall not take any adverse action against any User who files a grievance in good faith, whether with ByteMart or with a statutory forum.

12. Contact

12.1 For all grievance related queries, please contact:

Grievance Officer: [NAME] **ByteMart [Private Limited / Limited]** Registered Office: [ADDRESS], New Delhi, India **Email:** [grievance@bytemart.in] **Phone:** [PHONE] **Working Hours:** [DAYS / TIMINGS]

12.2 Statutory channels:

Forum	Contact
National Consumer Helpline (NCH)	1915 / https://consumerhelpline.gov.in/
INGRAM Portal	https://consumerhelpline.gov.in/consumer/index.php/ portal
e-Daakhil	https://edaakhil.nic.in/
RBI Ombudsman	https://sachet.rbi.org.in/ / https://cms.rbi.org.in/
Data Protection Board of India	(See MeitY portal)

End of Grievance Redressal Policy